

22STCV36611 22STCV36611

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F05%2F2026

Source SHA-256: 34ae6007f60c57d7177ee04a0d15417f1141034ce863b4793319eb8347fc5db7

Case Number: 22STCV36611 Hearing Date: August 5, 2026 Dept: 732

John Doe v. Roe Youth Organization 1, et al.

Wednesday, August 5, 2026

CASE NUMBER: 22STCV36611

OPPOSED

Plaintiff John

doe's Motion for In Camera Review and Order to Name Roe Defendant

Facts:

This is an action based on liability for child sexual abuse. The Third Amended Complaint (TAC) alleges as follows. Plaintiff John Doe was a minor of 13 years old in 1991 when he was sexually abused by Defendant Roe Mentor. (TAC ¶ 23.) Roe Mentor was an agent, advisor, counselor, and/or volunteer for Defendant Roe Youth Organization 2, which was supervised by Roe Youth Organization 1. (TAC ¶ 23.) Defendants maintained Roe Mentor in his position despite having actual or constructive knowledge of Roe Mentor's dangerous propensities. (TAC ¶ 28.)

Procedural History: Plaintiff

filed the original Complaint on November 21, 2022. Plaintiff filed a First Amended Complaint on December 14, 2022, and a Second Amended Complaint on October 6, 2023. Plaintiff filed the TAC on January 4, 2024, alleging five causes of action:

1.

Negligence

2.

Negligent Supervision/Training/Hiring/Retention

3.

Sexual Battery

4.

Assault

5.

Intentional Infliction of Emotional Distress

On

April 1, 2025, this court heard Plaintiff's motion to amend complaint to reveal Defendant's name, and set a status conference regarding the court's ruling based on sealed materials for April 25, 2025.

On

April 25, 2025, through the judicial assistant, the court found insufficient corroborating evidence to grant Plaintiff's application.

On

May 5, 2025, the court held an OSC re: the April 25, 2025, order.

Plaintiff

filed the present motion for in camera review and order to name Roe defendant on July 9, 2026.

Defendant

filed an opposition on July 23, 2026.

Plaintiff

filed a reply on July 29, 2026.

Analysis

I.

MOTION FOR
IN CAMERA REVIEW AND ORDER TO NAME DEFENDANT

Code of Civil Procedure § 340.1

prescribes special procedures for the prosecution of claims based on the sexual assault of minors. That statute states that for such claims, “[e]very plaintiff 40 years of age or older at the time the action is filed shall file certificates of merit as specified in subdivision (f).” (Code Civ. Proc. § 340.1, subd. (e).) In actions brought by such plaintiffs, “a defendant shall be named by “Doe” designation in any pleadings or papers filed in the action until there has been a showing of corroborative fact as to the charging allegations against that defendant.” (Code Civ. Proc. § 340.1, subd. (k).)

Here, Plaintiff John Doe has accordingly sued Defendants Roe Mentor, Roe youth Organization 1, and Roe Youth Organization 2 through fictitious pseudonyms.

However, the statute does not require permanent anonymity for such defendants:

(I)

At any time after the action is filed, the plaintiff may apply to the court for permission to amend the complaint to substitute the name of the defendant or defendants for the fictitious designation, as follows:

(1) The application shall be accompanied by a certificate of corroborative fact executed by the attorney for the plaintiff. The certificate shall declare that the attorney has discovered one or more facts corroborative of one or more of the charging allegations against a defendant or defendants, and shall set forth in clear and concise terms the nature and substance of the corroborative fact. If the corroborative fact is evidenced by the statement of a witness or the contents of a document, the certificate shall declare that the attorney has personal knowledge of the statement of the witness or of the contents of the document, and the identity and location of the witness or document shall be included in the certificate. For purposes of this section, a fact is corroborative of an allegation if it confirms or supports the allegation. The opinion of any mental health practitioner concerning the plaintiff shall not constitute a corroborative fact for purposes of this section.

. . .

(3) If the application to name a defendant is made after that defendant's appearance in the action, the application shall be served on all parties and proof of service provided to the court, but the certificate of corroborative fact by the attorney shall not be served on any party or their counsel of record.

(Code
Civ. Proc. § 4340.1, subd. (l)(1)–(3).)

The court
must “review the application and the certificate of corroborative fact in camera” and its decision must be “based solely on the certificate and any reasonable inferences to be drawn from the certificate.” (Code Civ. Proc. § 340.1, subd. (m).) The certificates of corroborative fact must be kept under seal and remain “confidential from the public and all parties to the litigation other than the plaintiff.” (Code Civ. Proc. § 340.1, subd (n).) Plaintiff has lodged a certificate of corroborative fact with the court under seal.

This is
Plaintiff's second application for such relief. The prior motion was heard on April 1, 2025, whereupon the court took into consideration Plaintiff's documents lodged under seal and set a status conference on the motion for April 25, 2025. At this subsequent hearing, the judge was not present, but an order prepared by the court was issued through the judicial assistant stating as follows:

The Court has reviewed the confidential certificate of corroborative facts in camera and find, based solely on the certificate, and any reasonable inferences to be drawn from the certificate, that an insufficient corroborative fact of one or more of the charging allegations against the defendant has been shown.

(4/25/2025
Order.)

Defendant
notes the prior denial of Plaintiff's prior motion in opposition to the present

one. But Plaintiff in reply argues that there was no such denial, as the order was merely read by the judicial assistant, not the judge. (Reply at p. 6.) But the judicial assistant did not render the order; they merely relayed the order of the court. And said order was subsequently confirmed by the judge and parties on May 5, 2025, That order states as follows:

All parties consent to the Court's Order of 4/25/25 Re certificate and accompanying lodgment of documents.

The Court agrees to an In-Camera hearing to be held telephonically today with Plaintiff's counsel: Sahar Malek.

(5/5/2025
Order.)

The order reflects no change to the court's conclusion of April 25, 2025.

The present motion is thus properly construed as a successive application for relief under Code of Civil Procedure § 1008, subd. (b):

(b) A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. For a failure to comply with this subdivision, any order made on a subsequent application may be revoked or set aside on ex parte motion.

(Code
Civ. Proc. § 1008, subd. (b).)

Plaintiff does not here make the requisite showing.

Accordingly,
the motion is DENIED.

Superior Court of California

County of Los Angeles

Department 732

JOHN

DOE

Plaintiffs

v.

ROE YOUTH ORGANIZATION 1., et
al.,

Defendants.

Case No.:

22STCV36611

Hearing Date: August 5, 2026

[TENTATIVE] RULING RE:

Plaintiff

John doe's Motion for In Camera Review and Order to Name Roe Defendant

Plaintiff John doe's Motion for In Camera Review and Order
to Name Roe Defendant is DENIED.

Plaintiff to give notice.

Dated: August 5, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court